Decision on an application for resource consent(s) under the Resource Management Act 1991

Auckland Council
Te Kaunihera o Tāmaki Makaurau

Non-complying activity – subdivision (s11)

Application number(s):	SUB60315119
Applicant:	Raymond & Desma Nicklin
Site address:	53b Remiger Road Puhoi
Legal description:	Lot 8 DP 208981 Lot 1 DP 179794 Allotment 54A Parish of Puhoi Part Allotment 36 Parish of Puhoi Allotment 29,32,35 Parish of Puhoi and Part Allotment 28,30-31 Parish of Puhoi- (Part-cancelled) Lot 5 DP 198556

Proposal:

To undertake a rural subdivision to establish five additional rural-residential lots (Lots 1-5, ranging in size from 0.84ha to 2ha) on the basis of protecting 53.43 ha of significant native bush and to undertake a minor boundary adjustment with an adjacent site.

The resource consents required are:

Subdivision consent (s11) – SUB60315119

Auckland Council District Plan (Rodney Section)

The site is zoned General Rural under this plan. The application seeks subdivision based on the protection of bush areas, which is controlled by the overarching rule 7.14.3.2. In relation to these provisions the following is noted:

- The application proposes to create five rural-residential sites, based on the protection of 53.43ha of native bush. This has been assessed as meeting the criteria of Appendix 7B (rule 7.14.3.2.2). This in excess of the bush required to be protected by rule 7.14.3.2.1(b) to create 5 sites. In this regard Rule .14.3.2.5 is also met.
- The bush area will remain on the parent site. Rule 7.14.3.2.3 is met.
- The bush will be protected to meet the requirements of rule 7.14.3.2.4.
- Lot 1 is smaller than the minimum site size identified in rule 7.14.3.2.6. This does not relate to topographical or geotechnical constraints nor improved protection of the natural features.

- 5 sites will use the new right of way (EA, EE). This meets rule 7.14.3.2.7.
- Due to the non-compliance with the site size noted above, the application is a **Non-Complying Activity** pursuant to rule 7.14.1.3(a), as it does not comply with a requirement for the particular subdivision type.

The application also includes a boundary relocation between the balance site and Lot 5 DP 198556, resulting in Lot 8. This is managed via rule 23.8.15. The application is consistent with these rules and is a **restricted discretionary activity.**

Auckland Unitary Plan (Operative in part)

The site is zoned Rural Production under this Plan. Consent is required under this document for the following reasons:

- E39.4.1(A8)- Parts of the eastern area of the site are included in the 1% annual exceedance probability floodplain. Under E39.4.1 (A8) subdivision of land within such a natural hazard area is a **Restricted Discretionary Activity.**
- E39.4.1(A4)- Boundary adjustments not exceeding 10 per cent of the original site area and meeting Standard E39.6.3.2- **Controlled Activity.**
- E39.4.2(A17)- In-situ subdivision creating additional sites through protection of indigenous vegetation identified in the Significant Ecological Areas Overlay not complying with Standard E39.6.4.4. Some of the bush proposed for protection is located within the SEA. In this case however the relevant Standards are not met. This is detailed below. **Non- Complying Activity**.
    - E39.6.4.4(1)- The bush is not all identified within the SEA overlay, more than 3 lots will be created in- situ (although the "entitlement" in relation to the area of bush is met for 5 sites), a 20m buffer around the bush is not proposed, one site is less than 1ha in size).

    E39.4.2(A27)- Any other subdivision not provided for in Tables E39.4.1 or E39.4.2 (In situ subdivision protected bush that is not identified in the SEA overlay)- **Non-Complying Activity**.

Therefore, overall under this document the proposal must be assessed as a **Non-Complying Activity.**

Decision

I have read the application, supporting documents, and the report and recommendations on the application for resource consent(s). I am satisfied that I have adequate information to consider the matters required by the Resource Management Act 1991 (RMA) and make a decision under delegated authority on the application.

Acting under delegated authority, under sections 104, 104C, 106 and Part 2 of the RMA, the resource consent(s) are **GRANTED.**

Reasons

The reasons for this decision are:

1. The proposal passes the tests under s104D for non-complying activities. As discussed below the adverse effects of the activity on the environment will be minor and the proposal is not contrary to the objectives and policies of both the relevant plan and relevant proposed plan.

2. In accordance with an assessment under ss104(1)(a) and (ab) of the RMA the actual and potential effects from the proposal will be acceptable as:

    a. The application will see the creation of five new sites, and a minor boundary relocation with an adjacent site. Character and amenity effects associated with the boundary relocation will be minimal, if noticeable at all.

    Lots 1-5 are new sites and range in size from 0.84ha to 2ha. These sites are clustered together near the road while the remainder of the site will remain largely free of buildings, and in pasture and natural features. This clustering assists in reducing potential rural character effects, and also assists in rural productive use of the site and reduces the potential for reverse sensitivity related to this use.

    Lots 1-2 and 4-5 are located on the flatter part of the site, while Lot 3 is more elevated. Development on the sites is not expected to be dominant in this location, given the varying setbacks from the road, intervening vegetation, topography and the proposed planting andthe location of buildings also assists in this regard. The sites also remain sufficiently large to enable small scale farming activities to occur, and for dwellings to be spaced apart. Overall, adverse character and amenity effects are concluded to be no more than minor.

    b. The quality of the bush areas has been assessed by the applicant's ecologist and peer reviewed by Council's Consultant Ecologist. Both assessments conclude that these areas meet the quality criteria under Appendix 7B of the ACDP(RS), and those areas that are not noted in the AUP(OP) as Significant Ecological Area are the same quality as the designated SEA's.

    c. While the new proposed rural-residential sites will be located on high quality soils, the application results in the removal of a small area of land from the wider land holding. The application is expected to create a very small impact on productive potential of the land area.

    d. In relation to natural hazards the specified building areas on the new rural-residential lots are located outside of the identified flood plain and overland flowpath areas on the site. The proposal has been submitted with a geotechnical report that has been reviewed by Council's Development Engineer who has accepted the findings of the report and has made recommendations on conditions in relation to this assessment. Council's development Engineer has also reviewed flooding of the sites and the wider area and not raised any fundamental concerns.

    e. The new sites can be serviced and any adverse effects relating to these matters will be less than minor. This relates to servicing with respect to wastewater, water supply, stormwater, electricity and telecommunications.

f. In relation to traffic, transportation and access matters, the right of way has been reviewed by Council's Development Engineer and will be subject to related conditions to ensure it is fit for purpose. The additional traffic from the new sites can be accommodated on the surrounding road network.

g. In terms of positive effects, the proposal will involve the physical and legal protection in perpetuity of bush and riparian areas. The protected areas will also be subject to a targeted and ongoing weed and pest control regime. The creation of the rural-residential sites will also bring about positive effects in terms of accommodating the rural-residential needs and wellbeing of those who will ultimately live on the site, however it is recognised this particular effect is limited to only a few individuals.

h. With reference to s104(1)(ab), the protection of the bush and is also considered to be a specific offsetting or environmental compensation measures proposed by the applicant to ensure positive effects on the environment.

3. In accordance with an assessment under s104(1)(b) of the RMA the proposal is not on balance inconsistent with the relevant statutory documents. In particular the following:

a. The National Policy Statement for Freshwater Management 2014 is considered relevant to the proposal. Objective A1 seeks to safeguard the life supporting capacity, ecosystem processes and indigenous species including their associated ecosystems of freshwater. Objective A2 seeks to maintain and improve the overall quality of freshwater while protecting the significant values of water features. The application is considered to promote the policy directives within this national level document, as it will involve the permanent protection of riparian areas, both on the proposed rural- residential lots and within the larger bush areas themselves.

b. Regional Policy statement provisions within the AUP(OP) under Chapter B related to rural subdivision are also considered relevant. These provisions seek to prevent fragmentation of the rural land by sporadic and scattered subdivision. They also place importance on subdivision avoiding, remedying and mitigating adverse effects on the character, amenity, natural character, landscape and biodiversity values of rural areas. They anticipate that land subdivision protects and enhances significant indigenous biodiversity (Objectives B9.4.1 (1)(3) & (4)). The subdivision is not considered sporadic as it will involve bush protection as the basis of the subdivision. It is however noted that the bush is not identified as SEA, so not entirely consistent with these provisions, but nonetheless is of the same quality as SEA bush on the site. Furthermore, not all indigenous vegetation on the site is being protected as required under the AUP. Potential adverse effects in terms of character and amenity are acceptable in this instance, given specific characteristics of this site and mitigation proposed via conditions. In relation to the AUP(OP), it is noted that a decision on rural related appeals has been released (Decision [2018] EnvC 90) but that this has been appealed. The legacy plan therefore still has weighting and given the appeals against the requirement for indigenous vegetation to be located within an SEA and for all indigenous vegetation to be protected on the site at the time of subdivision, greater weight in this instance has been applied to the ACDP (RS).

c. Provisions related to the Rural Production Zone under the AUP(OP) are focussed on providing for a wide range and diversity of both existing and new rural production activities and to maintain and protect the productive capability of the land from inappropriate

subdivision, use and development (Objectives H19.3.2(1)&(2)). Having regard to the area to be removed from the larger lot, the size of the balance land the application is not contrary to these provisions.

The application, when considered with conditions, is not contrary to objectives and policies such as E39.2(1), E39.2(10), E39.3(3), H19.2.1(4), H19.2.2(4), H19.3.2(2)) which seek to maintain the rural character and qualities of this area. Similarly, the application is consistent with 7.3.1, 7.3.3, 7.4.1, 7.4.2 and 7.4.4 of the ACDP(RS). The application is consistent with the ecological outcomes sought by objectives and policies (AUP(OP): E39.2(12), E39.2(14), E39.3(11), E39.3(16), E39.3(18), ACDPS(RS): 7.3.7, 7.3.8, 7.4.8, 7.4.9, 7.4.10). The application will impact on the character of the immediate area, but in the context of the existing environment and conditions of consent, these effects are concluded to be acceptable (E39.2(8), E39.3(26), E39.3(27), H19.2.3(1), H19.2.4(1)).

The development provides appropriate on- site servicing (E39.2(17)) and has regard to natural hazards (E39.3(2), E39.3(30), E39.3(31)).

4. In accordance with an assessment under s104(1)(c) of the RMA no other matters are considered relevant.

5. In terms of s106 of the RMA, natural hazard issues have been reviewed by Council's Development Engineer and this assessment is relied upon. The application is supported by assessments related to stability and hydrological neutrality. Suitable access is available. The application is consistent with the outcomes sought by section 106.

6. This proposal achieves the sustainable management purpose of the RMA under Part 2. The application will result in the protection of large bush areas (s6(c), s7(d)), and the enhancement of these areas via weed and pest control and fencing (S7(c)). The application has regard to natural hazards (s6(h)) and provides for suitable building and access areas

   While the application will change the character of the immediate environment, in this case these effects are considered to be acceptable and the application will overall maintain a rural amenity (s7(c)) and the quality of this environment (s7(f)).

   The application is not expected to have any impact on Maori values (s7(a)) or the Treaty of Waitangi (s8)).

7. Overall the proposal is considered to have adverse effects that are acceptable and will also secure worthwhile positive effects primarily in relation to ecological matters. On balance the application is not contrary to provisions in the operative and proposed plans. It is considered consent should be granted subject to the imposition of appropriate conditions in the necessary areas.

Conditions

Under section 108 and 220 of the RMA, this consent is subject to the following conditions:

General conditions

1. The non-complying activity shall be carried out in accordance with the documents and drawings and all supporting additional information submitted with the application, detailed below, and all referenced by the council as resource consent number SUB60315119:

- Application Form and Assessment of Environmental Effects prepared by Cato Bolam Consultants Ltd, titled 'Ray Nicklin and Desma Nicklin, 53B Remiger Road, Puhoi, Resource Consent Application, Ref: 40320, dated 30th November 2017:

Report title and reference	Author	Rev	Dated
'Bush Quality Assessment Report'	Cato Bolam Consultants-Jessica Reaburn	-	01/09/2017
'Riparian Revegetation and Management Report'	Cato Bolam Consultants-Jessica Reaburn	R1	01/10/2017
'Weed and Pest Management Report'	Cato Bolam Consultants-Jessica Reaburn	-	01/10/2017
'Stormwater Hydrology Report'	Cato Bolam Consultants-Stan Thompson	-	17/10/2017
'Geotechnical Investigation Report Ref: 8447	Engineering Geology Limited	-	14/09/2017

Drawing title and reference	Author	Rev	Dated
'Scheme Plan of Lots 1 – 8 being proposed subdivision of LOT 8 DP 208981, LOT 5 DP 198556, LOT 1 DP 179794, ALLOTS 32,35,54a & PT ALLOTS 30,31,36 PARISH OF PUHOI – Sheet 1 of 2 (1200)	Cato Bolam Consultants-	5	Sep 2017
'Scheme Plan of Lots 1 – 8 being proposed subdivision of LOT 8 DP 208981, LOT 5 DP 198556, LOT 1 DP 179794, ALLOTS 32,35,54a & PT ALLOTS 30,31,36 PARISH OF PUHOI – Sheet 2 of 2 (1200)	Cato Bolam Consultants-	5	Sep 2017
'Site and Hydrology Plans of Lots 1 – 8 being proposed subdivision of LOT 8 DP 208981, LOT 5 DP 198556, LOT 1 DP 179794, ALLOTS 32,35,54a & PT ALLOTS 30,31,36 PARISH OF PUHOI – Sheet 1 of 2 (1200)	Cato Bolam Consultants-	4	Sep 2017

Other additional information	Author	Rev	Dated
Email titled 'Response to Section 92 request'	Cato Bolam Consultants-	-	23th March 2018

	Jessica Reaburn	
Email titled 'RE: [#CBC 40320] SUB60315199 – Remiger Road'	Cato Bolam Consultants- Jessica Reaburn	27th March 2018
E-mail ref: SUB6031511	Cato Bolam Consultants	9/5/18
E-mail ref: 53 Remiger Road	Cato Bolam Consultants	23/7/18
Letter: Further Response to s92 Request	Cato Bolam Consultants	11/9/18
E-mail re: SUB60315119	Cato Bolam Consultants	9/11/18

2. Under section 125 of the RMA, this consent lapses five years after the date it is granted unless:

   a. A survey plan is submitted to council for approval under section 223 of the RMA before the consent lapses, and that plan is deposited within three years of the approval date in accordance with section 224 of the RMA; or

   b. An application under section 125 of the RMA is made to the council before the consent lapses (five years) to extend the period after which the consent lapses and the council grants an extension.

3. The application is to be implemented in stages; the conditions of consent must be met as they relate to each stage. Prior to section 224(c) RMA certification being obtained for each stage, the consent holder shall provide a written summary confirming which conditions have been met and how.

Survey plan approval (s223) conditions

4. Before council will approve the survey title plan pursuant to s.223 of the Act, the following requirements are to have been satisfied at the consent holders cost:

   a. The survey title plan shall show and identify the right of way and servicing easements (Areas EE, EA, G, EB, EC, N, O, U, W, ED, B, C and D) on a Memorandum of Easements attached to the cadastral survey dataset as a supporting document. The consent holder shall meet the costs for the preparation, review and registration of the easement instruments on the relevant computer registers (certificates of title).

   b. The consent holder shall provide council with the calculated area(s) of bush and riparian margin to be protected on Lots 2, 4, 5, 6 and 7 (Areas CP- CW, CO, CX- CZ, Z) as shown on the approved scheme plan referred to in condition 1 and as defined by survey.

   c. The survey title plan shall show and identify the area(s) of bush and riparian margin to be protected on Lots 2, 4, 5, 6 and 7 (Areas CP- CW, CO, CX- CZ, Z) as "area to

be subject to land covenant". The boundaries of the covenant must coincide with the proposed fence line referred to in condition 5a.

d. The owner of Lots 6 and 7 hereon shall not without the consent of the council transfer or lease or otherwise dispose of any of these parcels of land except in conjunction with the others".

This condition shall be incorporated into a covenant pursuant to s.220(2) of the Resource Management Act 1991. The covenant shall be signed by the registered owners and the signed covenant received by the council before the council will approve the survey plan pursuant to s.223 of the Act.

Section 224(c) compliance conditions

5. Before a Certificate is issued pursuant to section 224(c) of the Act, the consent holder shall satisfy the following conditions at the consent holder's cost:

Fencing of bush and riparian areas

a. A permanent ungated continuous stock-proof fence, (minimum seven wire post and batten fence with no gates) capable of preventing browsing or other damage by farmed animals, shall be constructed outside of the bush and riparian areas to be protected on Lots 2, 4, 5, 6 and 7 (Areas CP- CW, CO, CX- CZ, Z) and maintained. How this will be achieved shall be demonstrated by the provision of a fencing plan, for the certification of the Team Leader- North- West Monitoring.

If the fencing is constructed after the survey title plan has been approved under section 223, a certificate from a licensed cadastral surveyor shall be provided to confirm that the fencing of these areas is located on the covenant boundary.

b. The consent holder shall arrange with council's Team Leader, North-West Monitoring, to inspect the fence which has been erected in accordance with Condition 5a.

Ecology

c. The consent holder shall carry out Weed and Pest Animal Control in accordance with the Weed and Pest Animal Control Plan approved by the condition 1. This shall be to the satisfaction of council's Team Leader, North-West Monitoring, prior to the issue of s224(c) certificate.

Advice Note: *Weed Control means, that there are no fruiting and / or flowering individuals of weed species present within the covenant area and any mature weed species present are dead. In addition there shall be no areas where weed species are smothering and / or out competing native vegetation including suppressing the natural regeneration processes. Control shall be demonstrated to the satisfaction of council's Team Leader, North-West Monitoring or similar position.*

d. All riparian planting and maintenance required to be undertaken on Lots 2, 4 and 5 (within Areas CO, CQ, CY, CZ and Z) shall be undertaken and completed in

accordance with the Riparian Revegetation and Management Report (R1) by Cato Bolam Consultants dated 12/7/18 detailed in condition 1.

Landscaping

e. The consent holder shall submit a landscaping plan to the Team Leader North- West Monitoring for certification, relating to:

- Amenity Planting on Lot 5, on the northern boundary (as offered in the AEE);
- The eastern boundary of right of way Areas EE and EA.

The purpose of the planting adjacent to right of way easement EE and EA is to obscure views of the access and its use when viewed from public locations (in particular the road), to reduce potential adverse character effects.

The landscaping plan shall contain:

- A plan of the planted area detailing the proposed plant species, plant sourcing, plant sizes at time of planting, plant locations, density of planting, and timing of planting. In terms of the planting on Lot 5, this shall be native species and compatible with the planting proposed in Areas CY and Z.
- A 5 year programme of establishment and post establishment protection and maintenance (fertilising, weed removal/spraying, replacement of dead/poorly performing plants, watering to maintain soil moisture, length of maintenance programme.

Once approved, the plan shall be implemented.

Engineering

f. The right of way over parts of proposed Lot 6 up to the intersection at Remiger Road shall be upgraded to a rural metaled standard to the Council's "Standards for Engineering Design and Construction". Sections with a grade greater than 1 in 8 shall be to a rural concrete standard. The upgrade shall ensure that the formed carriageway is no less than 3 metres in width. Further it shall include strategically placed passing bay/s for the purpose of servicing lots and make adequate provision for the drainage of surface water as well as provision of any ducts required for power and communications.

g. The engineering works required by this consent shall comply with the Council's "Standards for Engineering Design and Construction" as may be amended from time to time. Engineering Plans, as specified in the "Standards", shall be submitted to the Consents Engineer, and approval thereto received in writing, prior to the commencement of any works on the site.

Any variation or changes to the approved engineering plans shall be submitted for approval as an Amendment and approval received thereto prior to construction of the varied works.

The term 'engineering works' includes, but is not limited to:

1.1 Earthworks,

1.2 Any other works required by conditions of this consent.

Note: Structures such as retaining walls, in-ground walls and bridges will require a separate Building Consent.

Note: The plans required under this condition are separate to, and do not form part of, any Building Consent that may be required on the subject site.

h. Before commencement of any works, adequate silt retention structures as detailed in Technical Publication No. 90 "Erosion and Sediment Control Guidelines for Land Disturbing Activities in the Auckland Region" shall be installed. These structures shall be maintained and cleaned out as necessary until such time as complete grass cover, or other non-erodible surface has been re-established over the area. The location and detail of the sediment control shall be included in the Engineering Plans for approval prior to commencement of construction.

i. Written confirmation shall be provided from the electricity network supplier responsible for the area, that provision of an electric supply has been made available by underground or aboveground means to all saleable lots created and that all the network supplier's requirements for making such means of supply available have been met or satisfactory arrangements have been concluded with the Consent Holder to complete the provision of the supply.

j. Written confirmation shall be provided from a telecommunications network supplier responsible for the area, that provision of telecommunication services is available to Lots 1-5 inclusive. This may be by wireless means, resulting in a 'Provision of Services' Consent Notice.

Consent Notice conditions

6. The following conditions of consent shall be complied with on a continuing basis by the consent holder (which includes the subdividing owner and subsequent owners) and shall be recorded in a consent notice issued pursuant to s221 of the Resource Management Act 1991 registered on the title(s):

Monitoring Charges

a. The respective owners of Lot 1-7 shall pay the council monitoring charge or charges to recover the actual and reasonable costs that have been incurred to ensure compliance with the conditions attached to this consent.

Such charge/s shall be paid as part of the resource consent fee and the consent holder will be advised of the further monitoring charge or charges as they fall due. Such further charges are to be paid within one month of the date of invoice.

Engineering

b. Upon the construction of habitable buildings, sufficient water volume shall be provided in accordance with NZFS Fire Fighting Water Supplies CoP SNZ 4509:2008 and that this water supply be accessible for firefighting purposes. Should the water supply be provided by way of tank storage, this storage must be located a safe distance away from any habitable dwelling in accordance with the above CoP.

c. Any buildings erected on the building sites identified on the plan shall be subject to the requirements of the report prepared by Engineering Geology Ltd., ref: 8447, dated 14 September 2017, and any subsequent reports. Copies of the said plan and report(s) will be held at the offices of the Council, Centreway Road, Orewa.

d. All stormwater from buildings and paved areas on Lots 1-5 shall be collected and disposed of in accordance with the Stormwater Hydrology Report prepared by Cato Bolam Consultants, ref: 40320, dated 17 October 2017, unless otherwise approved by Council. The collection and disposal system shall be installed in conjunction with the erection of any buildings and shall thereafter be maintained to the specified capacity and standard in perpetuity.

e. Future owners of Lots 1-5 inclusive shall be advised that a physical telecommunication connection has not been provided to these lots and if such service is required, the full cost of providing this service will be met by the owners for the time being. This cost may include the installation of equipment to the utility providers and Council requirements and any growth or other applicable charges.

Access

f. No vehicle access to Lot 1 shall be obtained directly from Remiger Road; all vehicle access shall be obtained from right of way Area EE.

g. The local road network is expected to be subject to flooding that will periodically limit ingress and egress to Lots 1- 8 during and after large rainfall events. The owners of Lots 1-8 shall maintain their respective accesses including the flood markers as and when required.

Landscaping

h. At the time of making a building consent application, the owner of Lot 1 and Lot 2 shall submit for the certification of the Team Leader North- West Monitoring, a landscape planting and management plan (with supporting specifications).

The landscape planting and management plan shall contain:

- A plan of the planted area/s detailing the proposed plant species, plant sourcing, plant sizes at time of planting, plant locations, density of planting, and timing of planting.

- A programme of establishment and post establishment protection and maintenance (fertilising, weed removal/spraying, replacement of dead/poorly performing plants, watering to maintain soil moisture, length of maintenance programme.
- A methodology to demonstrate how the planting will be physically protected.

The purpose of the planting is to reduce the visibility of buildings and site access from public locations (in particular the road) and assist in reducing potential cumulative effects on rural character and amenity, and to assist in locating the buildings and driveways in a more vegetated landscape. This will require planting on the wider site not only in close proximity to the buildings themselves.

Once the landscape planting and management plan is certified, it shall be implemented in the following planting season. It shall be maintained and retained thereafter.

i. The landscaping within easement areas EE and EA on Lot 6 and on the northern boundary of Lot 5 (amenity planting), approved by resource consent SUB60315119, shall be retained and maintained in perpetuity by the owners of said Lots in accordance with the approved landscaping plan. In the event that the vegetation is dead or dying, it shall be replaced with the same or similar species in the next planting season.

Protection of natural areas

j. The natural areas to be protected on Lot 2 (CX), 4 (CZ), 5 (Z, CO & CY), 6 (CV, CW) and 7(CP – CU) identified by survey in accordance with conditions of resource consent SUB60315119 shall be protected in perpetuity to the satisfaction of the council's Team Leader, North-West Monitoring.

k. The owners or their successors in title, of 2, 4, 5, 6 and 7 shall:

i) Preserve the native vegetation, wildlife habitats and the natural landscape within the native areas to be protected on Lots 2, 4, 5, 6 and 7;

ii) Maintain any stock crossings and/or fish passage(s) in accordance with any easements through the covenant areas.

iii) Not (without the prior written consent of the council and then only in strict compliance with any conditions imposed by the council) cut down, damage or destroy, or permit the cutting down, damage or destruction of the vegetation or wildlife habitats within the native areas to protected;

iv) Not do anything that would prejudice the health or ecological value of the natural areas to be protected, their long term viability and/or sustainability;

v) Control all invasive plants and control pest animals within the native areas to be protected, in accordance with the Weed and Pest Animal Control Plan approved by resource consent SUB60315119.

Advice Note: *Weed Control means, that there are no fruiting and / or flowering individuals of weed species present within the covenant area and any mature weed species present are dead. In addition there shall be no areas where weed species are smothering and / or out competing native vegetation including suppressing the natural regeneration processes. Control shall be demonstrated to the satisfaction of council's Team Leader, Northern Monitoring or similar position.*

vi) Maintain an ungated stock-proof fence as approved by the council around the perimeter of the areas of native features to be protected on Lots 2, 4, 5, 6 and 7 and keep stock out of these areas.

vii) Not to be in breach of this covenant if any of the native areas to be protected die as a result of fire and/or natural causes not attributable to any act or default on their part for which they are not responsible.

Advice notes

1. *Any reference to number of days within this decision refers to working days as defined in s2 of the RMA.*

2. *For the purpose of compliance with the conditions of consent, "the council" refers to the council's monitoring inspector unless otherwise specified. Please contact Auckland Council on (09) 301 0101 or monitoring@aucklandcouncil.govt.nz to identify your allocated officer.*

3. *For more information on the resource consent process with Auckland Council see the council's website: www.aucklandcouncil.govt.nz. General information on resource consents, including making an application to vary or cancel consent conditions can be found on the Ministry for the Environment's website: www.mfe.govt.nz.*

4. *If you as the applicant disagree with any of the above conditions, or disagree with the additional charges relating to the processing of the application, you have a right of objection pursuant to sections 357A or 357B of the Resource Management Act 1991. Any objection must be made in writing to the council within 15 working days of your receipt of this decision (for s357A) or receipt of the council invoice (for s357B).*

5. *The consent holder is responsible for obtaining all other necessary consents, permits, and licences, including those under the Building Act 2004, and the Heritage New Zealand Pouhere Taonga Act 2014. This consent does not remove the need to comply with all other applicable Acts (including the Property Law Act 2007 and the Health and Safety at Work Act 2015), regulations, relevant Bylaws, and rules of law. This consent does not constitute building consent approval. Please check whether a building consent is required under the Building Act 2004.*

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Delegated decision maker:

Name: Nicola Broadbent

Title: Team Leader, Resource Consents

Signed: 

Date: 22/11/2019